SYNOPSIS AND LIST OF DATES

The present Special Leave Petition is preferred under Article 136 of the Constitution of India against the final order dated 5.9.2013 passed by the Hon'ble High Court of Karnataka at Bangalore in Criminal Petition No. 4637/2013, on its file, whereby the Hon'ble High Court has declined to enlarge the petitioner on bail who has been under-trial prisoner imprisoned at the District Prison, Udupi, Hiriyadka – 576 113, in the State of Karnataka.

The respondent-State of Karnataka, represented by the Inspector of Police, Shankaranarayana Police Station in Kundapur Taluk of Udupi District in the State of Karnataka, has been prosecuting the petitioner for the offences alleged in Crime No.5/2013 of the said police station, for the offences punishable under Sections 120 B, 143, 144, 147, 148, 341, 302 and 201 read with Section 149 of the Indian Penal Code 1790.

The petitioner has been arrayed as accused No.1 in the said proceedings. In the Final Report of Investigation/Charge Sheet submitted under Section 173 of the Code of Criminal Procedure,1 973 has implicated 8 persons, including the petitioner herein as having indulged in the commission of the offences mentioned above. At this stage itself it is felt apposite and appropriate that Accused No.2 by name Sri. Subramanya Udupa having been granted bail, not only the State of Karnataka but also a certain

Smt. Sringeshwari Adiga, the mother of the deceased Vasudeva Adiga have approached this Hon'ble Court with Special Leave Petitions under Article 136 of the Constitution of India questioning the order of the Hon'ble High Court of Karnataka by which bail has been granted to the said accused Sri. Subramanya Udupa. The petitioner learns and sincerely believes that in the said petitions, notices have been ordered to be issued to the respondent/therein. The said Special Leave Petitions have also arisen from the same criminal case mentioned above though the subject matter of the said SLPs is the order of the Hon'ble High Court of Karnataka granting bail to the said Sri. Subramanya Udupa, directed by a separate order of the said court.

The petitioner is an astrologer by profession. He is a pious erudite and scholarly personality, well-versed in Astrology and Vedic lore. He is held and respected by a large number of his disciples for his pious acts and also for his learning. He is a law-abiding citizen who has never indulged in the commission of any offence. Evenso, it is singularly unfortunate that he has been falsely implicated on the aforementioned charges, levelled against him that he has himself allegedly involved in the murder of a certain Sri. Vasudeva Adiga of Kokka Bailu – Vandaru Village, Udupi Taluk.

The Final Report dated 30.3.2013 submitted on 16.4.2013 in respect of the alleged offences stated to have been committed on 8.1.2013 states that there were long standing civil disputes between the petitioner herein and the deceased Vasudeva Adiga and that, according to the said report the said litigations might have culminated in the death of Sri. Vasudeva Adiga allegedly

because of "grudge against the deceased", attributed to the petitioner. It has been further alleged that on account of the civil disputes which have ensued between the petitioner and the deceased the former has entered into a conspiracy with the 7 other accused – the 2nd petitioner Sri. Subramanya Udupa being no other than the brother-in-law of the petitioner.

As has already been stated hereinbefore, the said Sri. Subramanya Udupa the 2nd accused in the proceedings before the court below having been granted bail, the same is the subject matter of the two Special Leave Petitions filed respectively by the State of Karnataka and Smt. Sringeshwara Adiga – the mother of the deceased. It has been further alleged in the complaint that the petitioner hatched a conspiracy in the house of the 2nd accused Sri. Udupa at Bangalore on 4.1.2013 as also with the other accused 3 to 8 and engaged the latter as mercenaries for kidnapping the deceased Vasudeva Adiga was kidnapped by the petitioner and the other accused and was thereafter done away with. The Corpse (dead body) of the deceased was allegedly transported in a car, the hands of the deceased had allegedly been tied and a stone having been statedly tied to the dead body the same was allegedly thrown into Madagada Tank in Emmedoddi Village of Kadur Taluk in Chickmagalur District – a place which is situate over 200 kms from Udupi, and over 220 kms from Bangalore also. So alleging, the petitioner was arrested during the investigation and has been in judicial custody till now. He sought for enlarging him on bail under Section 439 of the Code of Criminal Procedure, 1973, contending that the petitioner who is a scholastic and pious personality well-versed in Astrology and Vedic Lore is wholly innocent in the matter; that he is a law-abiding citizen; that the

story woven by the prosecution is based on circumstantial evidence; that the investigation records do not at all make out that the petitioner had entered into any conspiracy; with the other accused in the house of the 2nd accused for kidnapping and committing the murder of the deceased; that the accused No.2 Subramanya Udupa, as already stated, has been released on bail and hence on the principles of parity of treatment the petitioner would also be entitled to be let on bail; that the prosecution has sought to base its report on totally inadmissible evidence documents and weak evidence of no probative value, for implicating the petitioner; that there is no prima-facie case against him; and that therefore having regard to the presumption of innocence, unless the material which has been already collected which has culminated in the submission of the charge sheet/final report under Section 173 of the Code of Civil Procedure, 1973 is rebutted to the hilt and the guilt allegedly against the petitioner is established in evidence, he would be entitled to his personal liberty lest the same would be a travesty of justice badly affecting not only his livelihood but also his personal public and social image per contra the respondent-State opposed the Bail-Petition contending that the petitioner had previously filed a similar petition in Criminal Petition No. 1408/2013 which was dismissed on merits on 14.3.2013; that his latter petition in Cr.Petition No.2307/2013 was dismissed as withdrawn on 21.6.2013 that prima-facie incriminating circumstances exist for the petitioner being detained in prison as an under-trial prisoner that the petitioner and the deceased Vasudeva Adiga had fought long standing civil litigation which culminated in favour of the said Adiga and that the said litigation had alleged bydeveloped and deepened enemity between the petitioner and the deceased and that the petitioner allegedly had a

motive to murder the deceased; that the statements of eyewitness reveal that on 4.1.2013 the petitioner had gone to the house of the 2nd accused at Bangalore when the petitioner and the 2nd accused hatched a conspiracy with the other accused for eliminating the said Sri. Adiga and that the allegedly suspicious movements of the petitioner with the other accused on 7.1.2013 were noticed by other witnesses and that Smt. Sringeshwara Adiga – the mother of the deceased had lodged a F.I.R. against the petitioner, well before the dead body was noticed in Madagala Village that the deceased had allegedly been kidnapped and that the bail granted to accused No.2 Sri. Subramanya Udupa is the subject matter of S.L.P. (Cr.) Nos. 4342/2013 and SLP No. (Cr) 6646/2013) It was also further urged by the prosecution that the petitioner was statedly under continuous contact with the other accused through his mobile phone and the call details would show that the petitioner had contacted the other accused on 7.1.2013 before the incident and further that the petitioner had taken the other accused to handover the photograph of the deceased Vasudeva Adiga in the forenoon on 7.1.2013.

In the wake of the contentions raised by the respective parties to the proceedings the Hon'ble High Court of Karnataka has rejected the request of the petitioner for being enlarged on bail, thereby dismissing, by the impugned order the petition for bail. Hence, this Special Leave Petition, with a fervent prayer that this Hon'ble Court be pleased to grant Special Leave to Appeal from the said order and grant him the interim reliefs prayed for herein, pending disposal of the said petition.

LIST OF DATES:

7.1.2013	A certain Arun Kumar Shetty lodged a complaint with the police that his friend – a certain Vasudeva Adiga was missing from the midnight of the said date.
8.1.2013	The police registered the said information in Crime No.4/2013 of Shankarnarayana Police Station, Kundapura Taluk, Udupi District.
8.1.2013 (5.00 p.m.)	Smt. Sringeshwari Adiga – the mother of the said Vasudeva Adiga lodged another complaint that her son the said Adiga left the home at 9.00 a.m. in the morning of 7.1.2013 on his motorcycle and had not returned home and his pen was traced near the house of the petitioner herein and the motorcycle was traced the next day morning near Gollangadi and that someone's slipper was found near the same place. The said complaint was also registered by the same police in Crime No.5/2013 to the said Police Station for offences punishable under Sections 364, read with Section 34 of the Indian Penal Code.

9.1.2013 The petitioner his brother and uncle were enquired by the Police and after due enquiry were released under Section 169 of the Code of Criminal Procedure, 1973.

12.1.2013 The dead body of a male person was statedly found near Madagada Tank in Emmedoddi Village of Kadur Taluk in Chickmagalur District, a place located at 200 kms from the village of the petitioner and the deceased Vasudeva Adiga, the same day the Sub-Inspector of Police, Kadur Police Station, Chickmagalur District registered a case in Criminal No. 9/2013 for offences punishable under Sections 302 and 201 of the Indian Penal Code and was transferred from Kadur to Shankarnarayana Police Station, Udupi District as per the orders of the Chief Judicial Magistrate, Kadur. All the complaints (cases) were taken up together by the respondents, for investigation, and the same were converted as cased for offences punishable under Sections 364, 302 and 201 read with Section 34 of the Indian Penal Code.

16.1.2013 Accused Nos. 3, 4 and 5 by names Umesh, S. Naveen and K.S. Raghavendra were arrested from whom a Scorpio Vehicle (Jeep) No. KA -5 MD 7934 was recovered from them whereupon

they were remanded to judicial custody by an order of the learned Magistrate, Kundapur.

17.1.2013 The respondent arrested Accused No. 7 by names Mohan Kumar and T.C. Ravichandra.

18.1.2013 Accused No.2 by name Sri. Subramanya Udupa who has been granted by the Hon'ble High Court of Karnataka, Bangalore, bail under Section 439 of the Code of Criminal Procedure, 1973, had been arrested.

23.1.2013 The petitioner was again arrested by the respondent similarly accused Nos.1 to 7 were also arrested and all of them were produced before the learned Magistrate were remanded judicial custody on 24.1.2013 since when the petitioner has been in judicial custody.

16.2.2013 Criminal Misc. Petition No.40/2013 under Section 439 of the Code of Criminal Procedure,1973 filed by the petitioner was dismissed by the learned District & Sessions Judge, Udupi on the ground of the investigation being imcomplete by them.

14.3.2013 The Hon'ble High Court of Karnataka rejected the bail petition of the petitioner in Cr.Petition No.1408/2013. **ANNEXURE-P1** filed herewith is a copy thereof.

6.3.2013	Sri Subramanya Udupa – Accused No.2 was enlarged on bail by an order of the Hon'ble High Court of Karnataka in Cr.Petition No.1124/2013 on its file, under the same provision of law. **ANNEXURE-P2** filed herewith is a copy thereof.
16.4.2013	The Final Report dated 30.3.2013 of investigation was submitted on 16.4.2013.
17.6.2013	Accused No. 7 by name T.C. Ravi Chandra was also ordered to be released on bail by an order of the Hon'ble High Court of Karnataka in Cr.Petition No.3004/2013. **ANNEXURE-P3** filed herewith is a copy thereof.
21.6.2013	Yet another petition under the same provision for the same relief having been filed by the petitioner in Criminal Petition No.2307/2013 was withdrawn by the petitioner in view of the police having already submitted by them a Final Report/Charge sheet in C.C. No.1035/2013 under Section 173 of the Code of Criminal Procedure, 1973. **ANNEXURE-P4** filed herewith is a copy thereof.
26.7.2013	The petitioner filed yet another Criminal Petition under Section 439 of the Cr.P.C. in Crime No.4637/2013 seeking bail, on the grounds interalia of parity of treatment being extended

to all the similarly situated persons and the arrest and detention of the petitioner statedly based on him "voluntary statement" under Sections 10, 25, 26 and 32 (1) of the Indian Evidence Act, 1872 as laid down by this Hon'ble Court in the case of ***Sri Sri Sri Jayendra Saraswathi Swamigal and in Kasab's case reported respectively in 2005 (1) SCJ 293 and 2012 (8) SCJ reliance is also placed in support of the application for bail, on the ruling of this Hon'ble Court in the case of Siddaram S. Methri reported in 2011 (1) SCJ page 36*** which was also urged that punishment would begin after conviction and that imprisonment before conviction as a Substantial punitive content as laid down by this Hon'ble Court in Sanjay Chandra Vs. CBI reported in 2012 (2) SCJ page 203. **ANNEXURE-P5** filed herewith is a copy thereof.

6.8.2013 Smt. Sringeshwari Shetty the mother of the deceased filed an application under Section 301 (2) read with Section 482 of the Cr.P.C. requesting the court to allow her to appear and plead through a counsel in opposition to the bail petition. **ANNEXURE-P6** filed herewith is a copy thereof.

29.8.2013	The respondent contested the said petition through its Statement of Objection. **ANNEXURE-P7** filed herewith is a copy thereof.
5.9.2013	By the impugned order the bail-petition in Cr.Petition No. 4637/2013 has been dismissed by the Hon'ble High Court of Karnataka, Bangalore.
7.10.2013	Aggrieved thereby this Special Leave Petition is preferred.

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a)
(Criminal Appellate Jurisdiction)

Special Leave Petition

(Under Article 136 of the Constitution of India)

With prayer for interim relief

Special Leave Petition (Criminal) No. /2013
(Against the Final Order dated 5.9.2013 passed by the Hon'ble High Court of Karnataka at Bangalore in Criminal Petition No. 4637/2013)

In the matter of :-

Ramesh Bayari,
Aged 38 years,
s/o. late Subbanna Bayari,
Subramanya Nilaya,
Kokkanbailu, Vandaru Village,
Udupi Taluk, Udupi District – 576 227 Petitioner

And:-

The State of Karnataka,
Represented by Shankarnarayana Police,
Shankarnarayana Police Station,
Kundapura Taluk,
Udupi District – 576 227 Respondent

MEMORANDUM OF PETITION FOR SPECIAL LEAVE UNDER ARTICLE 136 OF THE CONSTITUTION OF INDIA FROM THE FINAL ORDER DATED 5.9.2013 PASSED BY THE HON'BLE HIGH COURT OF KARNATAKA, BANGALORE IN CRIMINAL PETITION No. 4637/2013

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

The humble petition of the petitioner above named

1. MOST RESPECTFULLY SHOWETH AS FOLLOWS:-

1. The petitioner above named respectfully submits this petition seeking special leave to appeal against the Final Order dated 5.9.2013 of the Hon'ble High Court of Karnataka at Bangalore, passed in Criminal Petition No. 4637/2013, whereby the Hon'ble High Court has dismissed the petition.

2. QUESTIONS OF LAW :-

(I) Whether, keeping in view the undeniable fact that as per exhibits P2 and P3 dated respectively 6.3.2013 and 17.6.2013 the co-accused Sriyuths Subramanya Udupa and T.C. Ravichandra having been enlarged on bail by the said respective orders of the Hon'ble High Court of Karnataka under Section 439 of the Code of Criminal Procedure, 173, is the said court justified in not applying the principle and doctrine of parity and similarity of treatment to the petitioner also, and in dismissing the Bail Petition of the petitioner?

(II) Whether the dismissal of the earlier petitions for bail, filed by the petitioner when investigation was incomplete, be an adverse and weighing circumstance against the grant of bail after the submission of the Final Report under Section 173 of the Code of Criminal Procedure, 1973, particularly, when not only Subramanya Udupa and Ravichandra T.C. have been ordered to be enlarged on bail?

(III) Whether the change of circumstances posterior to the dismissal of the earlier petitions would not justify grant of bail to the petitioner, particularly when the entire case pleaded by the prosecution is based on surmises, conjectures and strange probabilities of the petitioner having allegedly conspired with accused Nos. 2 and 3 in the house of the accused No.2?

(IV) Whether the Hon'ble High Court is justified in not considering the specific contentions which have merely been noticed in paragraphs 13 and 14 of the impugned order but have not been answered at all and the petition has been dismissed, without dwelling on and dealing with the said specific contentions?

(V) Whether mere circumstances could incriminate at this stage, the petitioner against whom no incriminating material of probative value has been collected by the respondent?

(VI) Whether recording of voluntary statement is not opposed to Section 164 of the Cr.P.C., and whether the so called voluntary statement attributed to the petitioner could be relied upon for the purpose of holding that there is a prima-facie case against the petitioner?

(VII) Whether the Hon'ble High Court is right in not appreciating that even Vijayasarathi –accused No.8 who has admittedly absconded and has not surrendered to the police having been granted bail, would it be justified that the petitioner is denied personal liberty when he has fully cooperated the police and has been loitering in the prison ever since 24.1.2013?

(VIII) Whether or not the arrest and detention of the petitioner are opposed to the provisions of Sections 10, 25, 26 and 32 (1) of the Indian Evidence Act, 1872, and the dictum of this Hon'ble Court in the ruling rendered in the cases of ***Sri Sri Sri Jayendra Saraswathi Swamigal and in Kasab's case reported respectively in 2005 (1) SCJ 293 and 2012 (8) SCJ reliance is also placed in support of the application for bail, on the ruling of this Hon'ble Court in the case of Siddaram S. Methri reported in 2011 (1) SCJ page 36***?

(IX) Whether, in the instant case where the prosecution is founded on mere circumstantial of evidence, and the investigation records do not reveal that the petitioner had

entered into any conspiracy with the other accused is the impugned order sustainable in law?

(X) Whether or not the rejection of the bail petition justified in the facts and circumstances of the case where the prosecution is relying on inadmissible documents and weak material of no probative value for incriminating the petitioner?

(XI) Whether the finding contained in the impugned order that there is a prima-facie case against the petitioner is well founded?

(XII) Whether serious allegations or accusations be sufficient to hold that a prima-facie case is made out by the prosecution particularly when even the Final Report is not based on any strong evidence of probative value?

(XIII) Whether or not the fact that the petitioner who is an astrologer a pious person and a person having no criminal background be allowed to loiter as an under-trial prisoner particularly when others have been enlarged on bail, and the petitioner has been under detention ever since 24.1.2013.

(XIV) Whether or not the request of the petitioner for being enlarged on bail on such conditions as the court below could impose on him was justified?

(XV) Whether or not the continued detention of the petitioner is in violation of his fundamental right under Article 21 of the

Constitution of India, particularly when in Criminal Jurisprudence it is too well-settled that no one can be presumed to be guilty unless the same is proved and established to the hilt?

3. DECLARATION IN TERMS OF RULE 4(2) :-

The petitioner states that no other petition seeking leave to appeal has been filed by him previously, against the judgment questioned in this Special Leave Petition.

4. DECLARATION IN TERMS OF RULE 6 :-

The Annexures P1 to P7 produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. GROUNDS :-

Leave to appeal is sought by the petitioner, on the following grounds.

(I) Because, keeping in view the undeniable fact that as per exhibits P2 and P3 dated respectively 6.3.2013 and 17.6.2013 the co-accused Sriyuths Subramanya Udupa and T.C. Ravichandra having been enlarged on bail by the said respective orders of the Hon'ble High Court of

Karnataka under Section 439 of the Code of Criminal Procedure, 173, the said court is not justified in not applying the principle and doctrine of parity and similarity of treatment to the petitioner also, and in dismissing the Bail Petition of the petitioner.

(II) Because the dismissal of the earlier petitions for bail, filed by the petitioner, when investigation was incomplete, is not an adverse and weighing circumstance against the grant of bail after the submission of the Final Report under Section 173 of the Code of Criminal Procedure, 1973, particularly, when not only Subramanya Udupa and Ravichandra T.C. have been ordered to be enlarged on bail.

(III) Because the change of circumstances, posterior to the dismissal of the earlier petitions would justify grant of bail to the petitioner, particularly when the entire case pleaded by the prosecution is based on surmises, conjectures and strange probabilities of the petitioner having allegedly conspired with accused Nos. 2 and 3 in the house of the accused No.2.

(IV) Because the Hon'ble High Court is not justified in not considering the specific contentions which have merely been noticed in paragraphs 13 and 14 of the impugned order and in not at all answering them but in dismissing

the petition, without dwelling on and dealing with the said specific contentions.

(V) Because, mere circumstances cannot, at this stage, incriminate the petitioner against whom no incriminating material of probative-value has been collected by the respondent.

(VI) Because recording of Voluntary Statement is opposed to Section 164 of the Cr.P.C., and because the so called voluntary statement, attributed to the petitioner, could not be relied upon for the purpose of holding that there is a prima-facie case against the petitioner.

(VII) Because the Hon'ble High Court is not right in failing to appreciate that even Vijayasarathi –accused No.8 who has admittedly absconded and has not surrendered to the police having been granted bail, would not be justified that the petitioner is denied personal liberty when he has fully co-operated with the police and has been loitering in the prison ever since 24.1.2013.

(VIII) Because the arrest and detention of the petitioner are opposed to the provisions of Sections 10, 25, 26 and 32 (1) of the Indian Evidence Act, 1872, and also opposed to the dictum of this Hon'ble Court in the ruling rendered in the cases of ***Sri Sri Sri Jayendra Saraswathi Swamigal and in Kasab's case reported respectively***

in 2005 (1) SCJ 293 and 2012 (8) SCJ reliance is also placed in support of the application for bail, on the ruling of this Hon'ble Court in the case of Siddaram S. Methri reported in 2011 (1) SCJ page 36.

(IX) Because, in the instant case where the prosecution is founded on mere circumstantial of evidence, and the investigation records do not reveal that the petitioner had entered into any conspiracy with the other accused the impugned order sustainable in law.

(X) Because the rejection of the Bail Petition is not justified in the facts and circumstances of the case where the prosecution is relying on inadmissible documents and weak material of no probative value for incriminating the petitioner.

(XI) Because the finding contained in the impugned order that there is a prima-facie case against the petitioner is not well founded.

(XII) Because mere serious allegations or accusations are not sufficient to hold that a prima-facie case is made out by the prosecution, particularly when even the Final Report is not based on any strong evidence of probative value.

(XIII) Because the fact that the petitioner who is an astrologer, a pious person and a person having no criminal background cannot be allowed to loiter in the prison as an under-trial prisoner, particularly when others have been enlarged on

bail, and the petitioner has been under detention ever since 24.1.2013.

(XIV) Because the request of the petitioner for being enlarged on bail on such conditions as the court below could impose on him has not at all been noticed or considered in the impugned order which cannot be considered, ***stricto sensu*** a speaking order.

(XV) Because the continued detention of the petitioner is in violation of his fundamental right under Article 21 of the Constitution of India, particularly when, in Criminal Jurisprudence, it is too well-settled that no one can be presumed to be guilty unless the same is proved and established to the hilt.

6. GROUNDS FOR INTERIM RELIEF :-

The petitioner is an astrologer, a vedic scholar and a pious citizen who has not involved himself at any point of time in the commission of any offence. It is quite unfortunate and poignant that he has been implicated on knowingly false accusations, and has been imprisoned since 24.1.2013. The Dussera Pooja celebrations on the holy occasion of the Dussera festival are inexorable and inviolable for the petitioner and the members of his family, who have a firm religious belief that the *rituals, poojas, havans, charities*, etc., which are an integral and inviolable parts of the said holy celebrations have to be necessarily conducted and performed by the petitioner who had been conducting the same although

his life but has been deprived of the same on account of his illegal detention. The Dussera festival has already commenced on the 5th instant. The twelfth, the thirteenth and the fourteenth instant are highly auspicious days when Sri Durga Pooja on account of Durgashtami, Ashwa Ayudha and Gaja Pooja on account Mahanavami and Vijayadashmi festival respectively have to be inevitably attended to and conducted by the petitioner and his family members, failing to do which, according to their firm belief and religious sentiments would bring adverse impact and result on them in many ways. Furthermore, on the 15th instant the petitioner has to perform the annual death ceremony of his father, in the native village of the petitioner lest the same would also be a severe failure of his basic duties towards his forefathers who would otherwise be denied the annual oblations and offerings, leading to their departed souls being deprived of their Heavenly abode and peace. This firm religious belief which he and the members of his family have been quite genuinely entertaining for decades, would be quite badly affected if the petitioner would not be permitted and allowed to attend to the Dussera Celebrations and the annual death ceremony of his father. Therefore, it is most respectfully submitted that the totality of the circumstances of the case and the well-settled position in law that the detention that the petitioner has been undergoing being a preventive one and not a penal one would richly commend the petitioner being enlarged on parole, immediately for enabling him to attend to the said celebrations and the annual ceremony and surrender back to the prison,

pending consideration of the interim relief and the final relief for grant of bail, as this Hon'ble Court may consider granting in the interest of justice and equity.

No kind of injury or prejudice would be caused to anyone including the respondent, if the innocuous ad-interim relief as prayed for herein above is granted, on the unreserved undertaking that the petitioner hereby furnishes that he will not indulge himself in any illegal activity while being on parole, if granted to him, and that he would also promptly re-surrender to the prison as may be directed by this Hon'ble Court, in that regard. On the other hand, the ad-interim relief prayed for herein above if is not granted, the petitioner and the members of his family would suffer irreparably and irretrievably in many ways, even their sincere religious faith and belief being badly affected thereby.

7. MAIN PRAYER :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal from the final order dated 5.9.2013 passed by the Hon'ble High Court of Karnataka, Bangalore, in Criminal Petition No. 4637/2013;

and

b) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and in the interest of justice and equity.

8. PRAYER FOR INTERIM RELIEF :-

For the reasons already stated above, it is respectfully prayed that this Hon'ble Court, be graciously pleased to:

(a) ***grant*** an ad-interim order that he be immediately released on parole for enabling him to attend to and take part in the religious celebrations of Dussera and for enabling him to perform the annual death ceremony of his father, and thereafter to surrender to the prison as might be directed by this Hon'ble Court, subject to further consideration of his prayer for being released on bail, pending consideration of this Special Leave Petition;

(b) ***grant*** an interim order that he be released on bail, pending disposal of this petition, on such terms and conditions that this Hon'ble Court be pleased to impose on him in that regard;

and

(c) ***pass*** such other order or orders which this Hon'ble Court may deem fit and proper in the interest of justice.

New Delhi
Date: 7.10.2013

Advocate for the Petitioner

IN THE SUPREME COURT OF INDIA

CRIMINAL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CRL) No. /2013

IN THE MATTER OF:

Ramesh Bayari Petitioner

Versus

The State of Karnataka Respondent

AFFIDAVIT

I, N. Mukunda Reddy, aged 41 years, s/o. late H.D. Narayan Reddy, residing at No.8, Bhavani Road, Hebbagudi, Bangalore- 560 099, Karnataka State, do hereby solemnly affirm and state on oath as follows:-

1. The petitioner is my mentor and Guruji. I am thus his disciple, I have been instructed and authorised by the petitioner to swear to this affidavit on his behalf, in support of the accompanying Special Leave Petition and the IAs filed therewith the contents of which were carefully read by him also who has stated that the contents of the List of Dates (from pages B to) the Special Leave Petition from paragraphs 1 to from pages and the IAs respectively are all true to the best of his personal knowledge and sincere belief. I am swearing to this affidavit on his behalf, on the basis of the oral instructions conveyed to me by him at the District Prison, Udupi, Hiriyadka – 576 113, Karnataka State, and on the basis of the information that I have gathered from the records of the case and the advice received from an advocate.

3. I also state that the aforementioned contents are all true to the best of my personal knowledge, belief and information so gathered.

4. The Annexures filed with the Special Leave Petition are true copies of their respective originals.

5. That the Special Leave Petition may kindly be taken be taken on Board for hearing as extremely urgent interim reliefs have been sought in the said Petition.

DEPONENT

VERIFICATION

Solemnly affirmed and signed before me on this 4th day of October, 2013, that the contents of this affidavit having been read over by me and admitted to be true and correct to the best of my knowledge and beliefs, and no part of it is false and nothing material has been kept concealed therefrom.

DEPONENT

Verified at Bangalore on this 4th day of October, 2013.

IN THE SUPREME COURT OF INDIA

CRIMINAL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CRL) No. 8444 /2013

IN THE MATTER OF:

Ramesh Bayari Petitioner

Versus

The State of Karnataka Respondent

APPLICATION FOR DELETION OF THE SECOND PART OF THE ORDER DATED 8.10.2013 PASSED IN THE AFOREMENTIONED SPECIAL LEAVE PETITION

To:

THE HON'BLE THE CHIEF JUSTICE OF INDIA
AND HIS COMPANION JUDGES OF SUPREME
COURT OF INDIA.

THE HUMBLE PETITION OF THE PETITIONER ABOVE NAMED

MOST RESPECTFULLY SHOWETH:

1. The petitioner who has been loitering in the jail as an under-trial prisoner since 24.1.2013 having been declined bail, had moved this Hon'ble Court with the aforementioned Special Leave Petition, praying for the grant of bail, and for the reversal of the order dated 5.9.2013 that the Hon'ble High Court of Karnataka at Bangalore, had passed in Criminal Petition No. 4637/2013 on its file.

2. Upon a consideration of the said Special Leave Petition, on its merits, this Hon'ble Court which found that the petition did not merit being entertained has been pleased to dismiss the same by its order dated 8.10.2013, reading thus:

> "ORDER
>
> Heard.
>
> We see no merit in this appeal leave petition, which is hereby dismissed.
>
> This order will not however, prevent the petitioner from filing an application for grant of bail after the material witnesses are examined in the trial".

3. The petitioner most respectfully submits and sincerely regrets that he could not bring to the kind notice of this Hon'ble Court, at the hearing of the aforementioned Special Leave Petition that committal of the proceedings to the Sessions Court has not been ordered till date nor had been ordered as on 8.10.2013 and that therefore the commencement of trial would be unduly delayed. Examination of the material witnesses would, consequently involve considerable time particularly in view of the fact that, according to the reliable information that he has nearly 200 Sessions cases have been pending adjudication before the court below viz., the Fast Track Court, Kundapur, Udupi District, Karnataka State. Resultantly, the prosecution which has been launched against the petitioner would also take considerable time for the trial in the case commencing and concluding.

4. In the circumstances stated above, the petitioner will not be in a position to move for grant of bail until and unless the condition imposed in the afore-extracted order that only upon material

witnesses being examined at the Trial that the petitioner has to move for grant of bail and not before the said event.

5. In view of the settled- position in law that speedy trial is also a part of the Right to Life guaranteed by Article 21 of the Constitution of India, and that the petitioner who is an under-trial prisoner but is wholly innocent in the matter would be entitled to seek to be set at liberty on a conditional bail being granted to him during the pendency of the trial would therefore respectfully submit that the terminal point mentioned in the afore extracted order would since affect his right to move the court below for grant of bail, the said condition/observation would commend being deleted from the said order dated 8.10.2013 passed by this Hon'ble Court. If the said observation would remain on record the petitioner will not be in a position to move the court below for grant of bail before the material witnesses are examined at the trial which has neither commenced nor can commence before committal to the case of the Sessions Court. Hence, this application.

6. For the foregoing reasons, the petitioner respectfully prays that this Hon'ble Court be pleased to **delete** from the order dated 8.10.2013 passed in the aforementioned Special Leave Petition, the sentence reading thus:

"ORDER

This order will not however, prevent the petitioner from filing an application for grant of bail after the material witnesses are examined in the trial".

New Delhi Advocate for the Petitioner
Date: /11/2013

IN THE SUPREME COURT OF INDIA

CRIMINAL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CRL) No. 8444 /2013

IN THE MATTER OF:

Ramesh Bayari Petitioner

Versus

The State of Karnataka Respondent

AFFIDAVIT

I, N. Mukunda Reddy, aged 41 years, s/o. late H.D. Narayan Reddy, residing at No.8, Bhavani Road, Hebbagudi, Bangalore- 560 099, Karnataka State, do hereby solemnly affirm and state on oath as follows:-

1. The petitioner is my mentor and Guruji. I am thus his disciple, I have been instructed and authorised by the petitioner to swear to this affidavit on his behalf, in support of the accompanying IA filed therewith the contents of which were carefully read by him also who has stated that the contents of the paragraphs 1 to 6 are all true to the best of his personal knowledge and sincere belief. I am swearing to this affidavit on his behalf, on the basis of the oral instructions conveyed to me by him at the District Prison, Udupi, Hiriyadka – 576 113, Karnataka State, and on the basis of the information that I have gathered from the records of the case and the advice received from an advocate.

3. I also state that the aforementioned contents are all true to the best of my personal knowledge, belief and information so gathered.

DEPONENT

VERIFICATION

Solemnly affirmed and signed before me on this 10th day of November, 2013, that the contents of this affidavit having been read over by me and admitted to be true and correct to the best of my knowledge and beliefs, and no part of it is false and nothing material has been kept concealed therefrom.

DEPONENT

Verified at Bangalore on this 10th day of November, 2013.